

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William Rasenberger	Team: Squad #07	CCRB Case #: 202002605	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/01/2020 9:58 PM	Location of Incident: East Gun Hill Road and Tryon Avenue	18 Mo. SOL 5/4/2022	Precinct: 52		
Date/Time CV Reported Wed, 04/01/2020 11:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/08/2020 11:10 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Christina Moncion	11670	954455	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Gina Mestre	11607	955191	052 PCT
2. POM Bryan Scheblein	26121	955457	052 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . POF Christina Moncion	Abuse: Police Officer Christina Moncion stopped § 87(2)(b)	A . Substantiated
B . POF Christina Moncion	Abuse: Police Officer Christina Moncion frisked § 87(2)(b)	B . Substantiated
C . POF Christina Moncion	Abuse: Police Officer Christina Moncion searched § 87(2)(b)	C . Substantiated
D . POF Christina Moncion	Abuse: Police Officer Christina Moncion frisked § 87(2)(b)	D . Substantiated
E . POF Christina Moncion	Abuse: Police Officer Christina Moncion searched § 87(2)(b)	E . Substantiated
F . POF Christina Moncion	Abuse: Police Officer Christina Moncion interfered with § 87(2)(b) use of a recording device.	F . Substantiated
G . POF Christina Moncion	Abuse: Police Officer Christina Moncion failed to provide § 87(2)(b) with a business card.	G . Substantiated

Case Summary

On April 8th, 2020, the CCRB received the following complaint by phone from [§ 87(2)(b)] [BR 1].

On April 1st, 2020, at around 10 p.m., [§ 87(2)(b)] and his friend, [§ 87(2)(b)] were talking to one another on the northwest corner of East Gun Hill Road and Tryon Avenue in the Bronx. An unmarked police vehicle, occupied by Officers Christina Moncion, Brian Scheblein, and Gina Mestre, all of the 52nd Precinct anti-crime team, approached the two men. PO Moncion exited the vehicle, stopped [§ 87(2)(b)] (**Allegation A: Abuse of Authority – Stop, Substantiated**), and frisked [§ 87(2)(b)] sweatshirt pocket (**Allegation B: Abuse of Authority – Frisk, Substantiated**). PO Moncion then partially removed both a cellphone and a bottle of hand sanitizer from [§ 87(2)(b)] sweatshirt pocket (**Allegation C: Abuse of Authority – Search, Substantiated**). PO Moncion then proceeded to frisk other parts of [§ 87(2)(b)] clothing (**Allegation D: Abuse of Authority – Frisk, Substantiated**), including [§ 87(2)(b)] left pants pocket, from which PO Moncion removed a boxcutter (**Allegation E: Abuse of Authority – Search, Substantiated**). The officers then returned to their vehicle and began to drive away. [§ 87(2)(b)] approached the vehicle to film the license plate, but PO Moncion shone her flashlight toward [§ 87(2)(b)] cell phone, interfering with his ability to record (**Allegation F: Abuse of Authority – Interference with Recording, Substantiated**). Officer Moncion never provided [§ 87(2)(b)] with a Right to Know Act Card (**Allegation G: Abuse of Authority – Failure to Provide RTKA card, Substantiated**).

The CCRB received two body-worn camera videos of the incident [BR 2 and BR 3], as well as a cellphone video recorded by [§ 87(2)(b)] [BR 4].

Findings and Recommendations

Allegation A: Abuse of Authority – PO Christina Moncion stopped [§ 87(2)(b)]

Allegation B: Abuse of Authority – PO Christina Moncion frisked [§ 87(2)(b)]

Allegation C: Abuse of Authority – PO Christina Moncion searched [§ 87(2)(b)]

Allegation D: Abuse of Authority – PO Christina Moncion frisked [§ 87(2)(b)]

Allegation E: Abuse of Authority – PO Christina Moncion searched [§ 87(2)(b)]

Allegation G: Abuse of Authority – PO Christina Moncion failed to provide a RTKA card to [§ 87(2)(b)]

It is undisputed that on April 1st, 2020, at around 10:00 p.m., PO Moncion stopped, frisked, and searched [§ 87(2)(b)] at the intersection of East Gun Hill Road and Tryon Avenue in the Bronx. In his CCRB interview [BR 5], [§ 87(2)(b)] stated that he was speaking to [§ 87(2)(b)] in front of the Montefu Deli at the intersection of East Gun Hill Road and Tryon Avenue, when he observed an unmarked police vehicle driving slowly past the men on East Gun Hill Road. The vehicle then made a U-Turn, turned left onto Tryon Avenue, and stopped a few feet away from the men. This is seen in [§ 87(2)(b)] cell phone video [BR 4] from 00:00 to 00:55. [§ 87(2)(b)] stated in his CCRB interview [BR 6] that he did not know who was inside of the vehicle, and did not recognize it as an unmarked police vehicle, until it stopped by him. [§ 87(2)(b)] was wearing a black hooded sweatshirt and black sweatpants. There was a carpet-cutting knife in [§ 87(2)(b)] left pants pocket, which he uses in his trade as a construction worker. He had a large, office-sized bottle of hand sanitizer and a cell phone in the front stomach pocket of his sweatshirt. There were no noticeable bulges in his clothing, except that the front of his sweatshirt was slightly “puffy,” he

explained, because his stomach was protruding against the sweatshirt. At 00:32 in § 87(2)(b) video, § 87(2)(b) is seen in the left of the frame. He is stationary, and both of his hands are in his pants pockets, while the left side of his body faces East Gun Hill Road. Between 00:49 and 00:53, § 87(2)(b) front sweatshirt pocket can be seen. There is an amorphous and non-descript bulge in the sweatshirt pocket.

During his CCRB interview [BR 7], PO Scheblein stated that he pulled his vehicle over nearby § 87(2)(b) because PO Moncion wanted to investigate § 87(2)(b). PO Scheblein had not himself made any observations of § 87(2)(b) and did not recall whether PO Moncion had shared her own observations. PO Moncion stated during her CCRB interview [BR 8] that she wanted to investigate § 87(2)(b) because she had observed two suspicious bulges in § 87(2)(b) clothing, and believed that § 87(2)(b) was behaving “nervously.” PO Moncion made these observations from inside her vehicle, she said, as PO Scheblein drove westbound on East Gun Hill Road, past the corner of East Gun Hill Road and Tryon Avenue, where § 87(2)(b) was standing. PO Moncion stated that she discerned an L-shaped bulge, consistent with the size and shape of a firearm, in § 87(2)(b) sweatshirt pocket, while § 87(2)(b) was facing East Gun Hill Road. § 87(2)(b) she explained, then turned his body away from the police vehicle, as though he was trying to hide his sweatshirt pocket. This allowed PO Moncion to observe § 87(2)(b) left side. She discerned a “long, hard” bulge in § 87(2)(b) left pants pocket, which she immediately identified as a box cutter – which she acknowledged is legal for work purposes. She then observed § 87(2)(b) pacing back and forth within a square of the sidewalk. PO Moncion stated that she was certain that § 87(2)(b) had identified her vehicle as a police vehicle, because it is very “noticeable,” and the residents of the area all know what unmarked police vehicles look like. Thus, she knew that when § 87(2)(b) turned his body away from the police vehicle, and began pacing back and forth, he was reacting to having seen the police vehicle. PO Moncion added that the area is known for gun violence. PO Scheblein’s statement corroborated this assertion.

PO Scheblein stated that after pulling his vehicle over nearby § 87(2)(b) he observed a “heavy” and “thick” bulge in his sweatshirt pocket; he did not, however, consider § 87(2)(b) suspicious. It is undisputed that PO Moncion, seated in the rear driver’s seat, exited the vehicle and approached § 87(2)(b). At this time, as seen between 01:18 and 01:22 in § 87(2)(b) video, § 87(2)(b) still has his hands in his pockets. He only removes his hands from his pockets when PO Moncion directs him to put his hands up.

It is undisputed that PO Moncion then frisked the outside of § 87(2)(b) sweatshirt pocket, before removing a cell phone and partially removing a bottle of hand sanitizer from this pocket. PO Moncion is seen removing the bottle of hand sanitizer between 00:30 and 00:47 in her own body-worn camera footage [BR 2]. PO Moncion stated during her CCRB interview that, while frisking § 87(2)(b) sweatshirt pocket, she continued to believe that the pocket contained a firearm. PO Moncion is heard stating “just a cellphone, sir?” at 00:37 in her own body-worn camera footage. She then asks “what’s this?” before removing a bottle of hand sanitizer from § 87(2)(b) sweatshirt pocket. PO Moncion stated to the CCRB that she did not believe that the object she referred to as a cell phone was in fact a cell phone. Instead, she believed it was a firearm, but did not want to share this with § 87(2)(b). PO Moncion further stated that the bottle of hand sanitizer was positioned upright in § 87(2)(b) sweatshirt pocket, while his cellphone lay horizontally, directly next to the bottle of hand sanitizer. This created an L-Shape, according to PO Moncion, which is consistent with the shape of a handgun. Although the stop report that PO Moncion prepared [BR 9] is generally consistent with her statement, the report does not mention an “L-shaped” bulge. Moreover, in PO Moncion’s body-worn camera footage between 00:40 and 00:46, it appears that the bottle is positioned horizontally when PO Moncion removes it from § 87(2)(b) pocket. There is no indication that the bottle was ever standing upright.

§ 87(2)(b) stated that once PO Moncion had frisked his sweatshirt pocket, she entered each of his pants pockets, without first patting them down. PO Moncion stated that she believed she frisked § 87(2)(b) left pants pocket, immediately after searching § 87(2)(b) sweatshirt

pocket, because she had already identified the outline of a box cutter in the pants pocket. She patted down this object – which was in fact a box cutter -- and then removed it from § 87(2)(b) pocket. § 87(2)(b) cell phone footage, between 1:35 and 1:40, captures PO Moncion's frisk of § 87(2)(b) left pants pocket. It does not appear that PO Moncion frisked this pocket immediately after frisking § 87(2)(b) sweatshirt pocket. Instead, it appears that she frisks the side of § 87(2)(b) sweatshirt, and then frisked downwards along § 87(2)(b) thigh, before stopping at his left pocket. In PO Scheblein's body-worn camera footage [BR 3], between 00:37 and 00:42, the rippling motion in § 87(2)(b) sweatshirt indicates that PO Moncion simultaneously frisked the right side of § 87(2)(b) clothing, as § 87(2)(b) stated. After recovering the box cutter, PO Moncion continued to frisk § 87(2)(b) as seen between 01:44 and 02:05 in § 87(2)(b) cell phone footage. Both within the stop report she prepared and during her CCRB interview, PO Moncion stated that she offered § 87(2)(b) an RTKA business card at the conclusion of the stop. However, PO Moncion's body-worn camera footage as well as § 87(2)(b) cell phone footage show that she never offered a business card to § 87(2)(b).

NYPD PG 212-11 states that upon reasonable suspicion that a person has committed, is committing, or is about to commit a felony or Penal law misdemeanor, an officer may stop and detain the person. If a police officer develops a reasonable suspicion that the person is armed and dangerous, the officer may frisk the person for a deadly weapon or any instrument, article or substance readily capable of causing serious physical injury and of a sort not ordinarily carried in public places by law-abiding civilians. Reasonable suspicion that a person is armed and dangerous may arise from the officer's observations or the facts and circumstances of the encounter including observation of something on the person that the officer reasonably suspects is a weapon. Where the frisk reveals an object that the member of service reasonably suspects may be a weapon, the member of service may search only those interior portion of the stopped person's clothing the remove the weapon.

"Furtive movements" or mere presence in a "high crime area," standing alone, are insufficient bases for a stop or frisk. Moreover, even when used in combination with other stop factors, the stopping officer must be able to specifically describe the suspicious nature of the "furtive movements" which he observed, and s/he must not defined the "high crime area" too broadly. NYPD Patrol Guide Procedure 212-11 [BR 10].

In *People v. Taveras*, the Court found that, whereas *waistband* bulges are often indicative of a weapon, there are a number of inherently innocuous objects which could be the cause for a *pocket* bulge. Therefore, undefinable pocket bulges are not sufficient predicates for a frisk for a handgun, although defined bulges in the outline or configuration of a gun do warrant a frisk. *People v. Taveras*, 155 A.D.2d 131 [BR 11].

In *People v. Montero*, the facts were as follows. An officer frisked a man, and felt a large, unidentifiable item in the defendant's waistband. Although the item objectively did not resemble a firearm to the touch, the officer removed it, and discovered that it was a packaged quantity of heroin. The Court found that the officer did not have probable cause to remove the item. The Court held that any reasonable fear on the part of a police officer for his safety abates once a protective frisk of the defendant reveals a bulge which neither looks nor feels like any identifiable weapon. Once an officer's reasonable fear for safety abates, the officer is required to discontinue his search, and any additional searches or seizures will be improper. *People v. Montero*, 149 A.D.2d 628 [BR 12].

NYPD PG 203-09 states that an officer must offer a pre-printed Right to Know Act business card to any civilian that the officer has stopped, frisked or searched, unless the civilian is issued a summons or arrested. NYPD Patrol Guide Procedure 203-09 [BR 13].

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) was wearing a black and baggy sweat suit; § 87(2)(g)

At all points in § 87(2)(b) video where § 87(2)(b) sweatshirt pocket is seen, the pocket bulge appears to be shapeless and non-descript; § 87(2)(g)

there is no evidence in § 87(2)(b) video that § 87(2)(b) ever made any furtive movements § 87(2)(g)

It is therefore recommended that **allegations A and B be substantiated.**

§ 87(2)(g)

it is therefore recommended that **allegation C be substantiated.**

§ 87(2)(g)

It is therefore recommended that **allegation D and E be substantiated.**

§ 87(2)(g)

BWC footage shows, § 87(2)(g) that PO Moncion did not offer a card. It is therefore recommended that **allegation G be substantiated.**

Allegation F: PO Moncion interfered with § 87(2)(b) use of a recording device.

§ 87(2)(b) and § 87(2)(b) both stated that, after the stop had concluded, and all the officers had reentered their vehicle, PO Moncion tried to prevent § 87(2)(b) from recording the vehicle's license plate. In § 87(2)(b) cell phone video, between 02:34 and 02:55, PO Moncion is seen shining her flashlight in the direction of § 87(2)(b) cell phone, as he attempts to record the police vehicle's license plate. § 87(2)(b) is heard asking her to stop "flashing" him, but PO Moncion continues to do so. PO Moncion acknowledged during her interview that she believed § 87(2)(g)

§ 87(2)(b) was using his cellphone to record during the incident. She stated that she shone her flashlight at § 87(2)(b) not in order to prevent him from recording, but to make him back up from the police vehicle. She explained that she began to fear for her safety, because § 87(2)(b) was approaching her vehicle while shining his cell phone light at her, apparently in an attempt to blind her. She stated that she wasn't simply "going to sit there and be blinded."

NYPD PG 203-29 states that individuals have a right to lawfully record police activity. This right extends to individuals in public places, such as streets and sidewalks. Officers may not discourage an observer from recording the officer's activities, or intentionally obstruct cameras or recording devices when there is no law enforcement reason to do so. This right to observe or record police action can be limited for reasons such as the safety of the officers. NYPD Patrol Guide Procedure 203-29 [BR 14].

§ 87(2)(g)
PO Moncion was aware that § 87(2)(b) had been recording the incident. § 87(2)(g)
it is therefore recommended that **allegation F be substantiated.**

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party [BR 15].
- § 87(2)(b)
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- Officer Scheblein has been a member of service for 7 years, over which time he has been the subject of 14 other CCRB complaints and 46 allegations, eight of which have been substantiated. § 87(2)(g)
 - Case 201610413 involved two allegations of frisk, both of which were substantiated, and resulted in formalized training.
 - Case 201904252 involved a substantiated allegation of question, which resulted in instructions.
 - Case 201909592 involved allegations of failure to provide RTKA card, frisk, search, stop, and discourtesy, all of which were substantiated. To date, the NYPD has not reached a disposition in this case.
 - Case 202002393 involves allegations of force- inanimate object, physical force, refusal to process civilian complaint, search, threat of arrest, seizure of property, vehicle stop, and vehicle search. To date, this case is still under investigation.
- Officer Moncion has been a member of service for 7 years, over which time she has been the subject of 9 prior CCRB complaints and 25 allegations, none of which have been substantiated.

- ### Mediation, Civil and Criminal Histories

- Squad No: 7

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____